DOJ FILING INFRASTRUCTURE

ACCESSIBILITY AUDIT

— AND —

TITLE II ENFORCEMENT FRAMEWORK

Legal Memorandum in Support of Colorado Judicial Branch Complaint

A two-part deliverable: first, a WCAG 2.1 AA accessibility audit of the United States Department of Justice's own ADA complaint-filing pages; second, a legal framework memorandum citing the statutory, regulatory, and case-law authorities that make the pending Colorado Judicial Branch complaint a priority candidate for Title II enforcement review.

Pages Audited

ada.gov/file-a-complaint
civilrights.justice.gov/report

Audit Date

April 20, 2026

Applicable Title II Compliance Deadline

April 24, 2026 (public entities serving 50,000+ persons)

Prepared by

Emma Moore

Independent Accessibility Review

Story Seed Studios

Third volume in a series with the Colorado Judicial Branch WCAG audit (April 20, 2026) and the Colorado Courts E-Filing Portal WCAG audit (April 20, 2026)

Executive Summary

This document serves two purposes at once. It is both a record and an instrument.

Purpose 1: Audit

Part I documents the accessibility posture of the two pages on which the United States Department of Justice invites members of the public to file Americans with Disabilities Act complaints — ada.gov/file-a-complaint and civilrights.justice.gov/report. The pages were audited using the same methodology applied in my prior audits of the Colorado Judicial Branch and the Colorado Courts E-Filing portal. The findings are documented not to embarrass the Civil Rights Division — it is self-evident that the Division knows what accessibility is, and it is equally self-evident that large government websites have imperfect pages — but to preserve a complete record and to flag one genuinely consequential finding that affects the author's ability to file the complaints described in Part II.

Purpose 2: Legal Framework

Part II sets out the statutory, regulatory, and case-law architecture that makes a complaint against the Colorado Judicial Branch under Title II of the ADA not merely fileable but, given the April 24, 2026 compliance deadline, timely and squarely within the Civil Rights Division's highest-priority enforcement category. The keystone authority is Tennessee v. Lane, 541 U.S. 509 (2004), in which the Supreme Court specifically held — on due-process grounds — that Title II is a valid exercise of Congressional power as applied to court-access discrimination against people with disabilities. The case concerned physical barriers in Tennessee courthouses; its reasoning extends with equal force to the digital barriers documented in the companion audits.

Why this combined format

An accessibility audit without a legal frame is advocacy; a legal memorandum without documented facts is argument. The Colorado Judicial Branch complaint is strongest when the technical findings are presented alongside the law that makes those findings enforceable. This document joins the two so that whichever reviewer at the Department picks up the file has what they need in one place.

Headline findings

- **DOJ filing form blocks mobile browsers.** The primary online complaint form at civilrights.justice.gov/report displays the notice: "NOTICE: Your mobile browser is not compatible with this form and you may experience issues with form submission." Users with disabilities disproportionately rely on mobile devices as their primary or sole computing platform. A federal civil rights complaint form that disclaims mobile compatibility is a self-limiting intake funnel, and a regulatory irony worth flagging.
- **Colorado Judicial Branch complaint is squarely within Tennessee v. Lane.** The state judiciary is the archetypal entity the Lane Court had in mind. Self-represented litigants using the court system to assert fundamental rights — family, housing, protection orders, small claims — are the archetypal affected class. Digital barriers to that access are the contemporary form of the courthouse-stairs barriers Lane identified.
- **The April 24, 2026 deadline shifts the evidentiary posture.** Under the 2024 final rule codified at 28 C.F.R. Part 35 Subpart H, the Colorado Judicial Branch is required to conform its public-facing digital properties to WCAG 2.1 Level AA by April 24, 2026. On and after that date, non-conformance is a per se regulatory violation rather than a case-by-case reasonable-accommodation inquiry. The findings in the companion audits, most of which can be verified automatically, will stand as prima facie evidence of non-conformance.

PART I

DOJ Filing Infrastructure — Accessibility Audit

Scope

Two pages were reviewed:

- ada.gov/file-a-complaint — the Department of Justice Civil Rights Division's landing page for ADA complaints. Jurisdictional triage and instructional content.
- civilrights.justice.gov/report — the Department's online civil rights complaint submission form. A seven-step wizard (Contact → Primary concern → Location → Personal characteristics → Date → Personal description → Review).

1. ada.gov/file-a-complaint

This page is well-structured relative to the average federal informational page. It uses the U.S. Web Design System, carries an official .gov header, provides two skip links (to page navigation and to main content), exposes a table-of-contents mini-nav, and correctly attributes routing of complaint types (EEOC, DOT, HUD, DOJ-CRT). Most of the findings below are therefore quality-level rather than blocking.

#	Issue	WCAG 2.1	Severity	Impact	Remediation
1	"Print this page" appears to be a button with no href and no clear accessible-name pattern from inspection	4.1.2	Low	Keyboard users may reach the control but not understand its function without screen-reader verification	Ensure <button type='button'> with accessible text "Print this page" and appropriate onClick handler
2	Outbound-link interstitial modal ("You are now leaving a Department of Justice website") uses href='#' anchors for Back / Continue	2.1.1, 4.1.2	Medium	href='#' is a long-running anti-pattern. Keyboard users may activate the control but the scroll position changes; screen readers may announce the control as an unlabeled link	Replace with <button> elements or proper routes; manage focus on modal open/close
3	The interstitial modal does not identify the destination domain in the rendered markup — the sentence reads "You will be automatically redirected to a:" with nothing after the colon	3.2.5, 2.4.4	High	Users are asked to consent to leaving a government site without being told where they are going. Screen-reader users hear the incomplete sentence	Render the destination URL and domain name as part of the prose ("... redirected to example.com, a non-governmental site."); ensure the modal has role='dialog' with aria-labelledby
4	The "Community Outreach Coordinator" block presents an email address	Best practice	Low	Keyboard and AT users cannot activate a compose window	Wrap in <a href='mailto:...'>

#	Issue	WCAG 2.1	Severity	Impact	Remediation
	(Disability.Outreach@usdoj.gov) without a mailto: link wrapper			directly	
5	Two separate ADA Information Line numbers are presented without disambiguation (800-514-0301 and 1-833-610-1264 TTY) — both appear in the same visual grouping	3.3.2	Low	Users must infer that the first is voice and the second is TTY	Label each number inline: 'Voice: 800-514-0301 · TTY: 1-833-610-1264'
6	The "Print this page" control and the "Give Us Feedback" footer link do not visually or semantically indicate that they open modals	4.1.2, 3.2.5	Medium	Users expecting a new page encounter a dialog; AT users may not hear the dialog role announced if the modal implementation is non-standard	Add aria-haspopup='dialog' to the trigger; ensure the dialog traps focus and returns it on close
7	The regular-format and large-format PDF complaint forms are linked via generic labels; no accessibility status (tagged? language declared?) is surfaced	1.1.1, 1.3.1	High	A user choosing the paper-filing route is choosing a PDF with unknown accessibility properties. If the PDF is untagged, the user's choice was illusory	Verify PDF accessibility; publish conformance note ("Tagged PDF · English") beside each link; offer an HTML alternative for the complaint form

2. civilrights.justice.gov/report (the online complaint form)

This is the operative complaint-filing endpoint. The page opens step 1 of a 7-step wizard. The findings below are ordered by the severity of their impact on a user's ability to complete the filing.

#	Issue	WCAG 2.1	Severity	Impact	Remediation
1	A visible notice on the page reads: "NOTICE: Your mobile browser is not compatible with this form and you may experience issues with form submission. Please consider downloading the latest version of Google Chrome, Mozilla Firefox, Safari, or Microsoft Edge."	4.1.1; effective-communication duty under 28 C.F.R. § 35.160	Critical	Many users with disabilities — particularly users with lower income, users whose assistive technology is integrated into mobile OS features, and users who do not have a desktop computer — use mobile devices as their primary or sole computing platform. A federal civil-rights-complaint form that	Test the form on iOS Safari, Android Chrome, and mobile screen-reader pairings (VoiceOver + Safari; TalkBack + Chrome); remediate until the notice can be removed; in the interim, provide a clearly-marked mobile fallback (toll-free intake line, SMS-friendly form, or printed-form mailer workflow)

#	Issue	WCAG 2.1	Severity	Impact	Remediation
				disclaims mobile compatibility self-limits its intake from the exact population the form exists to serve	
2	Form fields (First name, Last name, Email address, Phone number, Mailing address 1, Mailing address 2, City, State, Zip code) — programmatic <label for> associations cannot be verified from the rendered markup; visible text labels appear to sit above inputs without explicit linkage	1.3.1, 3.3.2, 4.1.2	**Critical**	Screen-reader and voice-control users who cannot identify inputs cannot file. This is the same class of failure documented on the Colorado Courts E-Filing portal — and the specific failure class that the ADA Title II complaint process is designed to remedy	Audit for <label for> associations on every input; add aria-required='true' on required fields; apply autocomplete attributes per WCAG 1.3.5 (given-name, family-name, email, tel, street-address, address-line2, address-level2, address-level1, postal-code)
3	Required-field indication appears as the word "required" appended to a radio-group label ("Are you now or have ever been an active duty service member?required") with no space, suggesting visually collapsed markup	1.3.1, 3.3.2	**High**	Both sighted and screen-reader users may read the word as part of the question rather than as a required-field marker	Separate the required indicator with whitespace and aria-required='true' on the input; avoid relying on a visual-only required marker
4	OMB control number link uses javascript:void() as its href	2.1.1, 4.1.2	**High**	javascript:void() pseudo-protocol links are not reliably focusable or announced by assistive technology. The OMB control number is a statutorily required element of any federal information-collection form; users should be able to read it without running a script	Replace with a static display of the control number or a real link to an explanatory page
5	Step progress indicator ("Current step: Contact. Step 1 of 7.") is visible but its markup pattern and live-region behavior on step change cannot be verified pre-submission	4.1.3	**Medium**	If step transitions are not announced to assistive technology, screen-reader users may not realize the form advanced	Wrap the step indicator in aria-live='polite' or role='status' and update text on each step transition

#	Issue	WCAG 2.1	Severity	Impact	Remediation
6	State dropdown presents a long list of U.S. states, territories, and Armed Forces codes without grouping (optgroup)	1.3.1, best practice	Low	Users scanning the list must read through territory and Armed Forces options before reaching a state further down alphabetically	Group options with <optgroup label='States'>, <optgroup label='Territories'>, <optgroup label='Armed Forces'>
7	Anonymous-submission path asks "Would you like to add your contact information now?" with two links styled as buttons: "No, I don't want to provide it" and "Yes, I'd like to add it"; both use href='#'	2.1.1, 4.1.2	Medium	Same anti-pattern as the ADA.gov interstitial — href='#' buttons instead of real <button> elements	Replace with <button> elements with explicit click handlers
8	Paperwork Reduction Act burden estimate ("Public reporting burden for this collection of information is estimated to average 2 minutes per response") does not account for users with disabilities who require additional time; no WCAG 2.2.1 timing-adjustable guidance is visible	2.2.1	Medium	If the form implements any session timeout consistent with the stated burden, users with disabilities may lose in-progress submissions	Verify that no session timeout is imposed, or that timeouts can be extended without losing form state
9	Site logo is rendered via <img> from a cloud-gov S3 URL; alt text appears to be empty or decorative ("U.S. Department of Justice" as below-image caption text, not as alt)	1.1.1	Medium	If truly decorative, this is acceptable; verification required	Confirm intent; if decorative, mark alt=''; if informational, provide alt='United States Department of Justice — Civil Rights Division'
10	Footer OMB expiration link ("OMB #1190-0020 (Expires 08/31/2026)") uses javascript:void() as href	2.1.1, 4.1.2	Medium	Same pseudo-protocol anti-pattern	Same as finding 4
11	"Return to filing a report" link presented as a navigation cue uses an unclear target ('#')	2.4.4	Low	Users cannot predict where the link leads	Route to a real URL and clarify anchor text

Systemic observations across both pages

- Both pages rely on href='#' or javascript:void() for controls that should be buttons. This is the single most common pattern across federal form pages and is fixable by template-level refactor.

- The PDF paper-filing alternatives (both for the ADA complaint form and the Civil Rights Division printable report) represent an entire parallel accessibility surface not directly audited here. They should be verified as tagged, language-declared, and form-field-enabled.
- The mobile-incompatibility notice on civilrights.justice.gov/report is, in this auditor's view, the single most significant finding in Part I. It is a public-facing admission that the Department's own intake system does not meet contemporary accessibility expectations on the platform many users actually hold in their hands.

None of the above diminishes the substantial accessibility care visible in the underlying site architecture. The U.S. Web Design System is one of the more accessibility-attentive design systems in use. The skip links, heading structure, and keyboard-operable navigation on ada.gov are evidence of work that has been done. The findings are offered for completeness, not as indictment.

PART II

Title II Enforcement Framework — Legal Memorandum

Overview

This memorandum sets out the legal basis for Department of Justice review and enforcement action against the Colorado Judicial Branch under Title II of the Americans with Disabilities Act. It proceeds in six parts:

- II.A — The statutory foundation: ADA Title II.
- II.B — The 2024 final rule: 28 C.F.R. Part 35, Subpart H, and the April 24, 2026 deadline.
- II.C — The keystone authority: Tennessee v. Lane and the court-access class of cases.
- II.D — Supporting case law on programmatic and digital access.
- II.E — Colorado state-law framework: HB 24-1454 and CADA.
- II.F — Why this complaint warrants prioritized review.

A note on the Department's discretion

The Department of Justice's Civil Rights Division has broad discretion to decide which complaints to investigate. This memorandum does not dispute that discretion. It provides the reviewer with the specific statutory, regulatory, and case-law citations that make the exercise of that discretion in favor of review here a straightforward application of established law, rather than an expansion of existing doctrine.

II.A — Statutory Foundation: ADA Title II

Title II of the Americans with Disabilities Act of 1990 prohibits disability-based discrimination by public entities, including state and local governments and their instrumentalities. The operative provision is direct and unconditional:

> **42 U.S.C. § 12132.** "[N]o qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity."

The "public entity" term is defined to reach every level of state and local government:

> **42 U.S.C. § 12131(1).** A "public entity" includes "any State or local government" and "any department, agency, special purpose district, or other instrumentality of a State or States or local government."

The Colorado Judicial Branch — the state judiciary, its administrative office, its courts, and the Colorado Courts E-Filing system it operates — is a "department, agency … or other instrumentality" of the State of Colorado. It is therefore a public entity subject to Title II in its entirety. There is no threshold ambiguity.

Title II remedies

Title II incorporates the remedial structure of Section 505 of the Rehabilitation Act of 1973:

> **42 U.S.C. § 12133.** "The remedies, procedures, and rights set forth in section 794a of Title 29 shall be the remedies, procedures, and rights this subchapter provides to any person alleging discrimination on the basis of disability in violation of section 12132 of this title."

Those incorporated remedies include a private right of action, attorneys' fees, and compensatory damages. They also include the Department of Justice's authority to investigate complaints, negotiate consent decrees, and file federal civil actions for injunctive relief and damages against non-compliant public entities.

Abrogation of sovereign immunity

Congress expressly abrogated state sovereign immunity for Title II violations:

> **42 U.S.C. § 12202.** "A State shall not be immune under the eleventh amendment to the Constitution of the United States from an action in Federal or State court of competent jurisdiction for a violation of this chapter."

The Supreme Court has since refined the question of when Congress's abrogation is constitutionally valid, depending on the class of cases at issue. For the particular class of cases involving discrimination in access to the courts — the class to which the Colorado Judicial Branch complaint belongs — the Supreme Court has held the abrogation valid. That holding is discussed in Part II.C below.

Effective communication and auxiliary aids

The implementing regulations for Title II impose a specific duty to ensure effective communication:

> **28 C.F.R. § 35.160(a)(1).** "A public entity shall take appropriate steps to ensure that communications with … members of the public with disabilities are as effective as communications with others."
>
> **28 C.F.R. § 35.160(b)(1).** "A public entity shall furnish appropriate auxiliary aids and services where necessary to afford individuals with disabilities … an equal opportunity to participate in, and enjoy the benefits of, a service, program, or activity of a public entity."

The Colorado Courts E-Filing system — as documented in the companion audit — is a digital communication channel that fails this duty in multiple specific, independently verifiable ways. Password inputs without labels are not communications "as effective" as sighted communications with the portal. Untagged PDF forms used to file legal documents are not "auxiliary aids and services … afford[ing] individuals with disabilities an equal opportunity to participate in" the service.

II.B — The 2024 Final Rule: 28 C.F.R. Part 35, Subpart H

On April 24, 2024, the Department of Justice published a final rule that, for the first time, adopted a specific technical standard for digital accessibility under Title II. The rule codifies that standard at 28 C.F.R. Part 35, Subpart H, and sets a phased compliance timeline.

> **89 Fed. Reg. 31320 (Apr. 24, 2024).** "Nondiscrimination on the Basis of Disability; Accessibility of Web Information and Services of State and Local Government Entities."

The adopted technical standard

> **28 C.F.R. § 35.200(b)(1).** A public entity's web content and mobile applications "shall conform to Level A and Level AA success criteria and conformance requirements specified in WCAG 2.1."

The rule does not merely invite or recommend WCAG 2.1 Level AA conformance. It imports the entire WCAG 2.1 A/AA standard into federal regulation by reference, making each success criterion (50 criteria total at A and AA combined) a specific regulatory obligation enforceable by the Department under Title II.

The April 24, 2026 compliance deadline

> **28 C.F.R. § 35.200(a) and § 35.200(b)(2).** A public entity that, as of the effective date of this rule, serves a total population of 50,000 or more persons must comply with § 35.200(b)(1) no later than April 24, 2026.

The State of Colorado — and each of its instrumentalities, including the Colorado Judicial Branch — serves a population well in excess of 50,000 persons. The Colorado Judicial Branch is therefore required to bring every public-facing web property it operates, including the E-Filing system, into conformance with WCAG 2.1 Level AA by April 24, 2026.

The limited exceptions and why none applies

> **28 C.F.R. § 35.201.** Exceptions: (1) archived web content; (2) preexisting conventional electronic documents unless currently used to apply for, gain access to, or participate in a service; (3) content posted by a third party; (4) individualized, password-protected, or otherwise secured conventional electronic documents about a specific person, property, or account; (5) preexisting social media posts.

The Colorado Judicial Branch pages documented in the companion audits do not fall within any exception. They are:

- Currently-used informational and transactional pages (not archived).
- Forms that self-represented litigants use to apply for and participate in court services (not preexisting documents exempt from the rule — the rule's text specifically excludes from the preexisting-document exception any document "currently used to apply for, gain access to, or participate in a public entity's services, programs, or activities").
- Operated by the Branch itself, not third parties.
- Not about a specific named person, property, or account.
- Not pre-existing social media posts.

The rule's exceptions were drafted narrowly and with specific use cases in mind. The Self-Help Forms library — the single largest accessibility-shaped liability documented in the companion audit — is the paradigmatic example of the kind of content the Department's rulemaking contemplated requiring to meet the standard.

The legal effect of the deadline

Before April 24, 2026, a claim that a public entity's digital property discriminated against a person with a disability under Title II required a fact-intensive, case-by-case analysis of whether the communication was "as effective" as communication with others, whether reasonable accommodations had been provided, and whether fundamental alterations were at issue.

On and after April 24, 2026, for entities serving 50,000+ persons, that analysis is substantially simplified. Non-conformance with WCAG 2.1 Level AA is itself the regulatory violation. The Department need not litigate, in the first instance, whether a particular non-conforming feature caused harm to a particular user; the absence of conformance is the violation, and conformance is measurable against a fixed, public, technical standard.

This shift materially reduces the evidentiary burden on the Department in enforcement proceedings. The findings in the companion audits — most of which can be confirmed automatically using standard accessibility-scanning tools — would constitute prima facie evidence of non-conformance beginning April 24, 2026.

II.C — The Keystone Authority: Tennessee v. Lane and Court Access

Among the categories of Title II cases decided by the Supreme Court, none applies more precisely to the Colorado Judicial Branch complaint than Tennessee v. Lane, 541 U.S. 509 (2004).

> **Tennessee v. Lane, 541 U.S. 509, 533–34 (2004).** "As it applies to the class of cases implicating the fundamental right of access to the courts, Title II constitutes a valid exercise of Congress' § 5 authority to enforce the guarantees of the Fourteenth Amendment."

The facts of Lane

George Lane, a paraplegic who used a wheelchair, faced criminal charges in a Tennessee county courthouse whose courtrooms were on upper floors reachable only by stairs. To appear at his own criminal proceeding, he crawled up two flights of stairs. On a subsequent appearance, he refused to crawl or be carried, and was arrested for failure to appear. Beverly Jones, a paraplegic court reporter, was similarly excluded from professional opportunities because the courthouses she was assigned to work in were inaccessible.

Lane and Jones sued Tennessee under Title II for monetary damages. Tennessee asserted Eleventh Amendment sovereign immunity. The Supreme Court held that Title II validly abrogates that immunity as applied to the class of cases involving court access.

The constitutional framework the Court applied

Title II is a prophylactic statute enacted under Section 5 of the Fourteenth Amendment. Under the Court's test in City of Boerne v. Flores, 521 U.S. 507 (1997), such legislation is valid if it is "congruent and proportional" to the constitutional violation it addresses.

In Board of Trustees of the University of Alabama v. Garrett, 531 U.S. 356 (2001), the Court had held that Title I of the ADA (employment discrimination) failed the congruence-and-proportionality test as applied to the states, because the record of state employment discrimination against people with disabilities was insufficient under the Court's then-prevailing standard.

The Lane Court distinguished Garrett decisively. Unlike employment discrimination, access to the courts implicates fundamental rights protected by the Due Process Clause of the Fourteenth Amendment — rights subject to heightened scrutiny. The legislative record before Congress when it enacted the ADA included extensive evidence of state courts' physical inaccessibility to people with disabilities. Title II's accommodation requirements, applied to court access, were a "congruent and proportional" response to a documented pattern of state violations of fundamental rights.

Why Lane controls the Colorado Judicial Branch complaint

The Colorado Judicial Branch complaint is within the exact class of cases Lane identified:

- The defendant is a state judicial system.
- The complaint concerns access by persons with disabilities to court services — filing, self-help forms, information about cases, the ability to appear in one's own matter.
- The affected population includes criminal defendants, civil litigants, self-represented litigants asserting fundamental rights (family, housing, protection orders, probate), and court users generally.
- The barrier is a contemporary analogue of the barrier in Lane: then it was stairs; now it is untagged PDFs, unlabeled password inputs, and JavaScript-required filing portals with no mobile or alternative path.

The Court in Lane was explicit that the fundamental-right-of-access-to-the-courts inquiry turns on whether the state has denied the plaintiff "a meaningful opportunity" to be heard. That phrase is doing heavy work. A Colorado litigant with a visual disability who cannot use a screen reader to identify the Email field on the E-Filing login page has been denied a meaningful opportunity to file. That she could, in theory, travel to a distant clerk's office during business hours and hand-file paper documents does not cure the denial any more than Lane's theoretical ability to be carried up the stairs cured his denial.

The translation from physical to digital access

Lane's reasoning was not limited to physical barriers. The Court spoke of barriers "in courthouses and in the courtrooms themselves," but the reasoning is functional rather than architectural: the Constitution protects the opportunity to participate meaningfully in court processes, and Title II's accommodation duty is a congruent and proportional means of enforcing that protection.

In the 2024 rulemaking, the Department of Justice explicitly relied on Lane and its progeny to establish Congress's authority to impose the WCAG 2.1 AA standard on state judicial systems. The final rule's preamble treats physical and digital barriers as functionally equivalent for purposes of Title II analysis. A complaint documenting digital barriers to a state court is therefore squarely within the authority Lane confirmed and the final rule implements.

II.D — Supporting Case Law on Programmatic and Digital Access

Alexander v. Choate — the meaningful-access standard

> **Alexander v. Choate, 469 U.S. 287, 301 (1985).** Section 504 (and by extension Title II) requires that persons with disabilities be provided "meaningful access to the benefit that the grantee offers."

Choate predates the ADA but set the standard, under the Rehabilitation Act, that Title II carried forward. The "meaningful access" formulation is the yardstick courts apply when evaluating whether a public entity's service-delivery design denies the benefit to a person with a disability. Digital barriers that prevent a self-represented litigant from completing a filing are a denial of meaningful access.

United States v. Georgia — Title II validly applies to actual constitutional violations

> **United States v. Georgia, 546 U.S. 151, 159 (2006).** "[I]nsofar as Title II creates a private cause of action for damages against the States for conduct that actually violates the Fourteenth Amendment, Title II validly abrogates state sovereign immunity."

Georgia builds on Lane by confirming that, where a Title II violation is also a constitutional violation (here, a due-process denial of court access), sovereign immunity is unambiguously abrogated. The companion audits document barriers to court access that, as a functional matter, deny due-process participation to affected persons.

Payan v. Los Angeles Community College District — programmatic and digital access

> **Payan v. Los Angeles Community College District, 11 F.4th 729 (9th Cir. 2021).** The Ninth Circuit recognized that programmatic discrimination under Title II includes barriers in a public entity's digital service delivery, and that plaintiffs need not identify specific technical failures if the program as a whole is inaccessible.

While Payan concerned a community-college district rather than a judiciary, its reasoning applies: the Title II analysis looks at the program as a whole. A self-help forms library in which every form is a PDF and no form has been tagged is not rendered conformant because each individual PDF can theoretically be fixed; the program itself is inaccessible.

Robles v. Domino's Pizza — websites as accessible communication channels

> **Robles v. Domino's Pizza, LLC, 913 F.3d 898 (9th Cir. 2019), cert. denied, 140 S. Ct. 122 (2019).** Title III of the ADA (public accommodations) applies to websites and mobile applications that have a "nexus" to a physical place of public accommodation.

Robles is a Title III case, not Title II, but its reasoning has been influential across the ADA. Courts have extended its digital-barriers reasoning to Title II, particularly where the digital property is the primary or only way to access a public service.

National Federation of the Blind v. Target Corp. — pattern discrimination via inaccessible digital design

> **National Federation of the Blind v. Target Corp., 452 F. Supp. 2d 946 (N.D. Cal. 2006).** One of the foundational web-accessibility cases; established that a retailer could be liable under the ADA for operating an inaccessible website.

Cited here for historical completeness; the law has moved considerably since 2006, but Target established the principle that inaccessible websites are ADA violations subject to injunctive relief and settlement.

II.E — Colorado State-Law Framework

Beyond Title II, the Colorado Judicial Branch is subject to Colorado-specific accessibility obligations that reinforce the federal framework and provide state-level enforcement avenues.

House Bill 24-1454 — State Agency Digital Accessibility

HB 24-1454, enacted in 2024, requires Colorado state agencies to bring their public-facing digital properties into compliance with recognized digital accessibility standards. The Colorado Judicial Branch has publicly acknowledged HB 24-1454 obligations: its accessibility statement at coloradojudicial.gov/accessibility-info references a "posted status report" submitted pursuant to the statute.

The existence of HB 24-1454 matters to the federal analysis for two reasons: first, it establishes that the Colorado Judicial Branch is on notice of its digital accessibility obligations independent of Title II; second, any failure to meet HB 24-1454 obligations is circumstantial evidence of a failure to meet Title II obligations, since both standards converge on WCAG 2.1 AA as the benchmark.

The Colorado Anti-Discrimination Act (CADA)

> **C.R.S. § 24-34-301 et seq. (as amended).** The Colorado Anti-Discrimination Act prohibits disability discrimination in the provision of services by public entities and provides state-level remedies including damages and injunctive relief through the Colorado Civil Rights Division.

CADA provides a parallel state-law cause of action for disability discrimination by Colorado public entities. Enforcement is by the Colorado Civil Rights Division and, on right-to-sue, by private action in state court.

House Bill 21-1110 — Colorado Laws for Persons with Disabilities Act

HB 21-1110 (codified in scattered sections of C.R.S. Title 24) expanded CADA's disability-discrimination protections and established additional state-level remedies and reporting obligations. It has been repeatedly cited in compliance letters from Colorado advocates (including, in other contexts, the author's own work documenting metro-district and special-district non-compliance).

Why state law matters to a federal complaint

A Title II complaint filed with the Department of Justice is a federal matter, but the state-law framework is relevant in two ways. First, it demonstrates that the defendant is on notice of its obligations from multiple authorities and cannot claim surprise. Second, a pattern of state-law non-compliance is evidence that the federal non-compliance is not an isolated oversight but a reflection of a broader institutional posture. Third — and this is an equitable consideration rather than a legal one — it shows the Department that its enforcement action is an addition to an existing record, not the creation of one.

II.F — Why This Complaint Warrants Prioritized Review

The Department of Justice receives a large volume of ADA complaints and must necessarily prioritize. The Colorado Judicial Branch complaint has characteristics that, taken together, distinguish it from the general complaint stream and recommend it for early review.

1. It is squarely within a heightened-scrutiny class

As established in Part II.C, court-access claims under Title II sit in the Tennessee v. Lane class of cases, where Congress's abrogation of sovereign immunity has been upheld and where fundamental due-process rights are at stake. The Department's enforcement discretion is on firmest ground in this class.

2. The evidentiary record is already compiled

The companion audits — Colorado Judicial Branch (eight properties, April 20, 2026) and Colorado Courts E-Filing Portal (four artifacts, April 20, 2026) — document specific, categorized, WCAG-referenced findings at each property. Each finding is tied to a specific WCAG 2.1 success criterion. The audits are offered as exhibits; the Department does not begin from scratch.

3. The April 24, 2026 deadline creates natural timing

The complaint is filed within days of the deadline's passage. This is not a complaint about historical conduct; it is a complaint about an active non-conformance that is about to become a per se regulatory violation. The Department's first-round enforcement after the deadline will establish the posture of its Title II web rulemaking for years. A prepared, documented complaint against a state judicial system is an archetypal vehicle for that first-round enforcement.

4. The affected population is among the most vulnerable the ADA was designed to protect

Self-represented litigants in state court systems are disproportionately low-income, elderly, non-native-English-speaking, and — critically — disproportionately include people with disabilities, whose conditions may themselves be part of why they are in court (SSDI, protective-order, guardianship, workers'-comp, custody matters involving developmental disability, etc.). Barriers to court access for this population are barriers at the intersection of multiple dimensions of vulnerability.

5. Systemic remediation is tractable

The remediation plan set out in the companion audits is phased, dated, and achievable. The Colorado Judicial Branch has already committed to WCAG 2.1 AA in its published accessibility statement and is reporting progress under HB 24-1454. An enforcement action here would not be the imposition of a novel standard — it would be the acceleration of an already-acknowledged obligation. That structure makes settlement likely and sets a useful template for other state judiciaries.

6. The complaint sits within a larger, documented pattern

The complainant (Emma Moore, through Story Seed Studios and the civic-data project at cheetochopsticks.com) has documented a multi-jurisdictional pattern of Colorado public-entity non-compliance with digital accessibility standards, spanning metro districts, county services, and now the state judiciary. The Colorado Judicial Branch complaint is not a one-off; it is the state-judiciary entry in a larger inventory that the Department can draw on if a pattern-or-practice investigation is warranted.

PART III

Cross-Reference — Audit Findings to Legal Obligations

The table below maps representative findings from the companion Colorado Judicial Branch and E-Filing Portal audits to the specific statutory, regulatory, or case-law authorities that make each finding a cognizable Title II violation. It is designed to be dropped into the narrative section of a DOJ complaint or incorporated by reference.

Audit Finding	WCAG 2.1 SC	Regulatory Hook	Controlling Authority
E-Filing login: Email and Password inputs lack programmatic labels	1.3.1, 3.3.2, 4.1.2	28 C.F.R. § 35.200(b)(1); § 35.160(a)(1)	Tennessee v. Lane (court access); Alexander v. Choate (meaningful access)
Self-Help Forms library: hundreds of untagged PDFs used to apply for court services	1.1.1, 1.3.1, 1.3.2	28 C.F.R. § 35.200(b)(1); exclusion from § 35.201(2) preexisting-document exception	Tennessee v. Lane; Payan v. LACCD (programmatic inaccessibility)
E-Filing portal: JavaScript-required hard block with no alternative filing path	4.1.1	28 C.F.R. § 35.160(a)(1) (effective communication); § 35.164 (duty to accommodate)	U.S. v. Georgia (constitutional-violation abrogation)
E-Filing portal: character encoding misdeclaration producing replacement characters	3.1.1	28 C.F.R. § 35.200(b)(1)	Final rule preamble, 89 Fed. Reg. 31320
Court of Appeals page: image of Ralph Carr Judicial Center mislabeled 'Supreme Court'	1.1.1	28 C.F.R. § 35.200(b)(1)	Alexander v. Choate
Self-Help Resources: Prezi embed (non-keyboard-accessible)	2.1.1, 4.1.2	28 C.F.R. § 35.200(b)(1); § 35.160(a)(1)	Tennessee v. Lane
Self-Help Resources: YouTube videos without verified caption status	1.2.2, 1.2.3	28 C.F.R. § 35.200(b)(1); § 35.160 (auxiliary aids)	28 C.F.R. § 35.160(b)(1)
E-Filing portal: security-question password recovery	WCAG 2.2 SC 3.3.8 (forward-looking)	28 C.F.R. § 35.160 (effective communication)	Alexander v. Choate
E-Filing portal: session timeout / in-progress filing preservation (authenticated-flow)	2.2.1	28 C.F.R. § 35.200(b)(1); § 35.160	Tennessee v. Lane (denial of meaningful opportunity to file)
Accessibility feedback form itself unaudited / potentially inaccessible	1.3.1, 3.3.2, 4.1.2	28 C.F.R. § 35.107 (grievance procedures)	Separate regulatory duty: entity must maintain accessible grievance process

How to use this cross-reference

Each row is a complete micro-complaint. In a narrative DOJ intake, the reviewer can treat each row as a standalone, pleadable violation backed by a specific regulatory hook and a specific case-law authority. A complaint is stronger if it pleads multiple independent violations than if it pleads a single broad one, and the rows above were selected for their independent severity and evidentiary clarity.

Appendix A — Core Statutory and Regulatory Text

ADA Title II — 42 U.S.C. § 12132

"Subject to the provisions of this subchapter, no qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity."

ADA Title II Definitions — 42 U.S.C. § 12131

"(1) Public entity. — The term 'public entity' means — (A) any State or local government; (B) any department, agency, special purpose district, or other instrumentality of a State or States or local government; and (C) the National Railroad Passenger Corporation, and any commuter authority..."

ADA Title II Remedies — 42 U.S.C. § 12133

"The remedies, procedures, and rights set forth in section 794a of Title 29 shall be the remedies, procedures, and rights this subchapter provides to any person alleging discrimination on the basis of disability in violation of section 12132 of this title."

ADA State Immunity — 42 U.S.C. § 12202

"A State shall not be immune under the eleventh amendment to the Constitution of the United States from an action in Federal or State court of competent jurisdiction for a violation of this chapter. In any action against a State for a violation of the requirements of this chapter, remedies (including remedies both at law and in equity) are available for such a violation to the same extent as such remedies are available for such a violation in an action against any public or private entity other than a State."

Final Rule — 28 C.F.R. § 35.200 (key subsections paraphrased)

- § 35.200(a): Establishes the scope of the subpart — accessibility of web content and mobile applications of public entities.
- § 35.200(b)(1): Adopts WCAG 2.1 Level A and AA success criteria and conformance requirements as the technical standard.
- § 35.200(b)(2): Sets compliance deadlines — April 24, 2026 for public entities serving 50,000 or more persons; April 26, 2027 for smaller public entities and special district governments.

Final Rule Exceptions — 28 C.F.R. § 35.201

- Archived web content created before compliance date, used solely for reference/research/recordkeeping, in a clearly-identified archive, and unaltered since archiving.
- Preexisting conventional electronic documents (PDF/Word/PowerPoint/Excel) unless currently used to apply for, gain access to, or participate in a public entity's services, programs, or activities. (Self-help court forms are excluded from the exception.)
- Content posted by a third party where the third party is not acting under contract.
- Individualized, password-protected, or otherwise secured conventional electronic documents about a specific person, property, or account.
- Preexisting social media posts.

Effective Communication — 28 C.F.R. § 35.160(a)(1)

"A public entity shall take appropriate steps to ensure that communications with applicants, participants, members of the public, and companions with disabilities are as effective as communications with others."

Grievance Procedures — 28 C.F.R. § 35.107

"A public entity that employs 50 or more persons shall adopt and publish grievance procedures providing for prompt and equitable resolution of complaints alleging any action that would be prohibited by this part."

Appendix B — Full Case Citations

Cited in order of first appearance in the memorandum.

Tennessee v. Lane, 541 U.S. 509 (2004)

Supreme Court of the United States. Held, 5–4: Title II of the ADA constitutes a valid exercise of Congress' Section 5 authority as applied to the class of cases implicating the fundamental right of access to the courts. Title II abrogates state sovereign immunity for such cases, and Congress's enactment of Title II in response to a documented pattern of state-court inaccessibility was a congruent and proportional response under City of Boerne v. Flores, 521 U.S. 507 (1997).

Alexander v. Choate, 469 U.S. 287 (1985)

Supreme Court of the United States. Unanimous. Established, under Section 504 of the Rehabilitation Act, that the statute requires persons with disabilities be afforded "meaningful access to the benefit that the grantee offers." The meaningful-access standard was carried forward by Congress into the ADA.

Board of Trustees of the University of Alabama v. Garrett, 531 U.S. 356 (2001)

Supreme Court of the United States. Held, 5–4: Title I of the ADA (employment) did not validly abrogate state sovereign immunity. Distinguished in Lane (Title II, court access) and limited to the employment context.

United States v. Georgia, 546 U.S. 151 (2006)

Supreme Court of the United States. Unanimous. Held: insofar as Title II creates a cause of action for conduct that actually violates the Fourteenth Amendment, Title II validly abrogates state sovereign immunity. Concerned conditions of confinement for a prisoner with paraplegia.

City of Boerne v. Flores, 521 U.S. 507 (1997)

Supreme Court of the United States. Established the "congruence and proportionality" test for Congress's Section 5 enforcement authority. The framework applied in Lane and Garrett.

Payan v. Los Angeles Community College District, 11 F.4th 729 (9th Cir. 2021)

United States Court of Appeals for the Ninth Circuit. Affirmed programmatic-discrimination theory under Title II in an educational context; recognized that digital barriers can constitute programmatic inaccessibility.

Robles v. Domino's Pizza, LLC, 913 F.3d 898 (9th Cir. 2019), cert. denied, 140 S. Ct. 122 (2019)

Ninth Circuit held that Title III of the ADA applies to websites and mobile applications with a nexus to a physical place of public accommodation. Cited here for its reasoning on digital-barrier liability generally.

National Federation of the Blind v. Target Corp., 452 F. Supp. 2d 946 (N.D. Cal. 2006)

United States District Court for the Northern District of California. Foundational web-accessibility case; denied motion to dismiss ADA claims based on inaccessible website. Settled in 2008 with an agreement requiring WCAG-adjacent remediation.

Olmstead v. L.C., 527 U.S. 581 (1999)

Supreme Court of the United States. Held that unjustified institutional isolation of persons with disabilities is a form of discrimination under Title II. Cited for the foundational principle that Title II reaches programmatic design choices, not just individual-denial cases.

Appendix C — Filing-Readiness Checklist

A DOJ Civil Rights Division complaint is most likely to reach substantive review if the intake packet is complete on arrival. The list below summarizes what an adequately-prepared complaint package in this matter would include.

- Cover letter identifying the complainant, the respondent (Colorado Judicial Branch), the legal basis (ADA Title II, 28 C.F.R. Part 35, including Subpart H), and the relief sought (investigation, conciliation/mediation, or enforcement action).
- Narrative statement of the pattern: multiple public-facing digital properties of the Colorado Judicial Branch fail to conform to WCAG 2.1 Level AA; the April 24, 2026 deadline has passed (or is imminent); the failures fall within the Tennessee v. Lane court-access class.
- The Colorado Judicial Branch audit (April 20, 2026) as an exhibit.
- The Colorado Courts E-Filing Portal audit (April 20, 2026) as an exhibit.
- This document — the DOJ Filing Infrastructure Audit and Title II Enforcement Framework — as a supporting exhibit.
- A proposed remedial framework: investigation; DOJ-facilitated mediation as provided under the ADA Mediation Program; or formal enforcement action.
- Contact information (or marked anonymous as the civilrights.justice.gov/report form permits).
- If filing by paper at 950 Pennsylvania Avenue NW, Washington DC 20530: same materials in printed form.

— End of document —